

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MIRANDA DEVLIN,

Petitioner

VS.

TAD DEVLIN,

Respondent

) Case Number: FDI-21-794941

) Hearing Date: September 24, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
CHILD SUPPORT, FAMILY COURT 3044 PRESUMPTION; REQUEST FOR ORDER FOR
CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME), CHILD SUPPORT, FAMILY
COURT 3044 PRESUMPTION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Miranda Devlin (Mother) and Respondent Tad Devlin (Father). They share two minor children: Chloe (DOB: 4/25/12) and Paige (DOB: 4/15/16).
- 2) Per the Findings and Order After Hearing (FOAH) filed 11/21/24, Mother had parenting time with the minor children every Tuesday after school until Wednesday morning drop off at school and every other weekend from Friday after school until Sunday at 5:00 PM.
- 3) On 11/27/24, the Court granted a Domestic Violence Restraining Order (DVRO) after a 6-day trial. Father is the protected party, and Mother is the restrained party. The minor children are not listed as protected parties; however, Father was awarded sole legal and sole physical custody.
- 4) On 10/8/25, Mother filed a Request for Order seeking: (a) a finding that Mother rebutted the Family Code section 3044 presumption against joint custody; (b) joint legal and physical custody;

1 (c) modification of the parenting time orders to increase her time an extra day during the week
2 and one extra night every other weekend; (c) modification of the 2/11/25 child support orders to
3 guideline child support. Mother attached a proposed holiday schedule to her Request for Order.

4 5) On 10/8/25, Mother filed an Income and Expense Declaration.

5 6) On 11/17/25, the parties appeared for Readiness hearing. The matter was scheduled for mediation
6 with Family Court Services on 1/6/26 and regular hearing in Dept. 403 on 2/3/26.

7 7) On 11/5/25, Father filed a Responsive Declaration in opposition to Mother's Request for Order
8 asking the Court to deny Mother's requested relief. However, Father states that he is agreeable to
9 Mother having the minor children an extra weeknight (Tuesday and Wednesday night until
10 Thursday morning school drop-off) on weekends that Mother does not have parenting time.

11 8) On 11/5/25, Father filed an Income and Expense Declaration.

12 9) On 11/12/25, Mother filed a Reply Declaration reiterating her requests.

13 10) On 1/6/26, the parties attended FCS mediation but did not reach an agreement.

14 11) On 1/27/26, Mother filed a supplemental declaration in support of her position.

15 12) On 2/3/26, the parties appeared at hearing, and Father requested a long-cause (i.e., evidentiary)
16 hearing. The Court did not adopt any portion of its Tentative Ruling issued for the 2/3/26 hearing
17 and set all pending issues for long-cause hearing on 5/21/26.

18 13) On 5/6/26, Mother filed an Income and Expense Declaration.

19 14) On 5/21/26, the parties appeared at the long-cause hearing and the Court, in pertinent part: (a)
20 determined Mother rebutted the Family Code section 3044 presumption against joint custody; (b)
21 granted Mother's request for joint legal custody; (c) increased Mother's parenting time with the
22 minor children from Tuesdays pick-up afterschool to Thursday drop off at school with alternate
23 weekends; and (d) ordered the parties to attend FCS Mediation on 6/18/26. The Court made
24 additional orders, including continuing the matter to 6/30/26 for issues related to child support,
25 summer schedule, vacation schedule, and make-up time.

26 15) On 6/18/26, the parties attended FCS mediation and were able to reach a partial agreement.

27 16) At the prior 6/30/26 hearing, the Court ordered that Chloe shall attend Lowell High School for the
28 upcoming 2026-2027 school year, Paige shall attend Saint Peter and Paul Elementary and Middle
29 School through 8th grade, and all outstanding issues are continued to 7/30/26. The Court ordered

each party to serve supplemental declarations to detail their position on the remaining issues at least ten days before the hearing.

17) On 7/20/26, Mother filed a supplemental declaration requesting guideline child support and spousal support retroactive to 2/1/26 based on Chloe living with Mother full time and Paige being on a 2-2-5 parenting time schedule. Mother states her unemployment and increased parenting time has resulted in depletion of funds.

18) On 7/20/26, Mother filed an Income and Expense Declaration.

19) On 7/20/26, Father filed an Income and Expense Declaration.

20) At the prior 7/30/26 hearing, Father objected to Judge Pro Tem, Judith Harding hearing the matter; therefore, the matter was continued to 08/20/26.

21) On 8/7/26, Mother filed an Income and Expense Declaration.

22) On 8/10/26, Father filed supplemental declaration in opposition to Mother's request for modification of support. Father seeks enforcement of prior support orders and requests Mother be ordered to pay 50% of the school tuition costs for the minor children. Father requests the Court remind Mother not to involve the minor children in these court proceedings.

23) On 8/10/26, Mother filed a supplemental declaration reiterating her request for modification of support. It appears to the Court that Mother may have accidentally filed this supplemental declaration again on 8/11/26.

24) On 08/20/26, the matter was heard and the Court issued the following orders:

- a. The tentative ruling is not adopted as the order of the Court. Parties shall submit, file, and serve a brief with up to 10 pages within 10 days or by 09/14/26 before next hearing.

25) On 09/14/26, Mother filed a declaration, which has been read and considered by the Court.

26) On 09/14/26, Mother filed an updated Income and Expense Declaration.

27) On 09/14/26, Father filed a declaration, which has been read and considered by the Court.

B. Findings and Order

- 1) As to any pending Child Custody/Visitation issues raised in Mother's October 8, 2025, Request for Order - those remaining/pending requests are ALL DENIED. The Court will not make any additional orders related to child custody and visitation, which were not resolved by the 05/21/26 long-cause. Both parties are hereby ordered to follow and comply with Judge Diesman's orders.

- 1 2) As to Mother's request to modify spousal support raised in Mother's supplemental declaration,
2 such request is DENIED. This issue is not properly before the Court. If Mother wishes to modify
3 spousal support, Mother must file a separate Request for Order pursuant to Family Code 213.
- 4 3) Mother's request for modification of the 2/11/25 support order is GRANTED retroactive to
5 5/1/26 as the Court finds Mother met her burden of showing a change in circumstances
6 warranting a modification of support given that Mother's employment status and the parties'
7 parenting time changed. See *Marriage of Bardzik* (2008) 165 CA 4th 1291, 1303-1304.
- 8 4) For the period of 5/1/26 (date on which Mother's employment ended) - 5/21/26 (date on which
9 the Court ordered a 2-2-5 parenting time schedule), and in accordance with "XSpouse A"
10 attached hereto and incorporated herein, Father owes Mother \$3,438 in guideline monthly child
11 support.
- 12 5) For the period of 5/21/26 (date on which the Court ordered a 2-2-5 parenting time schedule) -
13 8/14/26 (date on which Mother's unemployment ended), and in accordance with "XSpouse B"
14 attached hereto and incorporated herein, Father owes Mother \$4,663 in guideline monthly child
15 support.
- 16 6) Effective 8/14/26 (date on which Mother's unemployment ended) – current, and in accordance
17 with "XSpouse C" attached hereto and incorporated herein, Father owes Mother \$2,983 in
18 guideline monthly child support.
- 19 7) Father owes Mother \$2,328.90 in support arrears for the period of 5/1/26 – 5/21/26 (\$110.90/day
20 for 21 days), plus \$11,932 in support arrears for the period of 5/21/26 – 8/14/26 (\$1,109 for the
21 rest of May + (2,983 x 4) for June, July, August, and September). This means that Father owes
22 Mother a total of \$14,260.90 in support arrears less any support Father already paid during this
23 period. The parties are ordered to meet and confer regarding the payment of arrears to account for
24 and subtract: (a) any support Father already paid during this time, and (b) any amount of support
25 overpayment Mother was previously ordered to reimburse Father. Should meet and confer efforts
26 fail, the Court will reserve jurisdiction over calculation of arrears to the time of trial.
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- 1 8) The XSpouse reports are based on the parties' respective Income and Expense Declarations
2 (Mother's filed 5/6/26 and 7/20/26 and 9/14/26 and Father's filed 7/20/26) and the following
3 distinctions:
- 4 a. XSpouse A is based on Mother's unemployment and 50% parenting time with Chloe and 28%
5 parenting time with Paige,
6 b. XSpouse B is based on Mother's 50% parenting time with Chloe and 50% parenting time
7 with Paige.
8 c. XSpouse C is based on Mother's 50% parenting time with Chloe and 50% parenting time
9 with Paige.
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- 11 9) Father's request that Mother be ordered to pay for 50% of the school tuition, extracurricular
12 activities and camps (including but not limited to summer camps) and sports costs of both minor
13 children is DENIED.
- 14 10) Father's request that the Court deviate from guideline child support based on special
15 circumstances to avoid windfall to Mother is DENIED.
- 16 11) Father's request that the Court recalculate child support per guideline based on the 50/50
17 custody/visitation orders is GRANTED.
- 18 12) Father's request that the Court require Mother and 14-year-old child to abide by the Court order
19 for 50/50 custody and visitation is GRANTED. Both parties are expected to follow the existing
20 court orders.
- 21 13) Mother is admonished not to involve the minor children in these court proceedings.
- 22 14) The Court will prepare the Findings and Order After Hearing.
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Fixed Shares	Father	Mother	Monthly figures		Cash Flow		Guideline	Proposed
#of children	1	1	2026					
% time with NCP	49.99 %	28.00 %						
Filing status	HH/MLA	SINGLE	GUIDELINE		Comb. net spendable		20149	20149
# exemptions	3	1	Nets(adjusted)		Percent change		0%	0%
Wages+salary	30000	0	Father	20899	Father			
Self-employed income	0	0	Mother	-750	Payment cost/benefit		-3438	-3438
Other taxable income	2562	0	Total	20149	Net spendable income		17461	17461
TANF+CS received	0	0	Support		Change from guideline		0	0
Other nontaxable income	0	0	Addons	0	% of combined spendable		87%	87%
New spouse income	0	0	Guideln CS	3438	% of saving over guideline		0%	0%
401(k) employee contrib	0	0	S.Clara SS	0	Total taxes		11634	11634
Adjustments to income	0	0	Total	3438	Dep. exemption value		0	0
SS paid prev marriage	0	0	-		# withholding allowances		0w	0w
CS paid prev marriage	0	0	Settings changed		Net wage paycheck		18469	18469
Health insurance	29	750			Mother			
Other medical expense	0	0			Payment cost/benefit		3438	3438
Property tax expense	1435	0			Net spendable income		2688	2688
Ded interest expense	0	0	Proposed		Change from guideline		0	0
Charitable contributions	0	0	Tactic 9		% of combined spendable		13%	13%
Misc tax deductions	0	0	CS	3438	% of saving over guideline		0%	0%
Qual bus income ded	0	0	SS	0	Total taxes		0	0
Required union dues	0	0	Total	3438	Dep. exemption value		0	0
Mandatory retirement	0	0			# withholding allowances		0	0
Hardship deduction	0 *	0 *	Saving	0	Net wage paycheck		0	0
Other GDL deductions	0	0	Releases	0				
Child care expenses	750	0						

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	60 - 40	750	0	0	Father	3438	Father	3438	Father
	72 - 28	375	0	0	Father	527	Father	527	Father
	49 - 51	375	0	0	Father	2911	Father	2911	Father

Fixed Shares	Father	Mother	Monthly figures		Cash Flow	Guideline	Proposed
#of children	2	0	2026				
% time with NCP	0.00 %	49.99 %	GUIDELINE		Comb. net spendable	20149	20149
Filing status	HH/MLA	SINGLE	Nets(adjusted)		Percent change	0%	0%
# exemptions	3	1	Support		Father		
Wages+salary	30000	0	Father	20899	Payment cost/benefit	-4663	-4663
Self-employed income	0	0	Mother	-750	Net spendable income	16235	16235
Other taxable income	2562	0	Total	20149	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	81%	81%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	4663	Total taxes	11634	11634
401(k) employee contrib	0	0	S.Clara SS	0	Dep. exemption value	0	0
Adjustments to income	0	0	Total	4663	# withholding allowances	0w	0w
SS paid prev marriage	0	0	Settings changed		Net wage paycheck	18469	18469
CS paid prev marriage	0	0			Mother		
Health insurance	29	750			Payment cost/benefit	4663	4663
Other medical expense	0	0			Net spendable income	3913	3913
Property tax expense	1435	0	Proposed		Change from guideline	0	0
Ded interest expense	0	0	Tactic 9		% of combined spendable	19%	19%
Charitable contributions	0	0			% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	4663	Total taxes	0	0
Qual bus income ded	0	0	SS	0	Dep. exemption value	0	0
Required union dues	0	0	Total	4663	# withholding allowances	0	0
Mandatory retirement	0	0			Net wage paycheck	0	0
Hardship deduction	0 *	0 *	Saving	0			
Other GDL deductions	0	0	Releases	0			
Child care expenses	750	0					

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	50 - 50	750	0	0	Father	4663	Father	4663	Father
	50 - 50	375	0	0	Father	1749	Father	1749	Father
	50 - 50	375	0	0	Father	2915	Father	2915	Father

Fixed Shares	Father	Mother	Monthly figures		Cash Flow	Guideline	Proposed
#of children	2	0	2026				
% time with NCP	0.00 %	49.99 %	GUIDELINE		Comb. net spendable	26716	27084
Filing status	HH/MLA	SINGLE	Nets(adjusted)		Percent change	0%	1%
# exemptions	3	1	Father		Father		
Wages+salary	30000	10000	20899		Payment cost/benefit	-2799	-2755
Self-employed income	0	0	Mother		Net spendable income	18099	18144
Other taxable income	2562	0	Total		Change from guideline	0	45
TANF+CS received	0	0	Support		% of combined spendable	68%	67%
Other nontaxable income	0	0	Addons		% of saving over guideline	0%	12%
New spouse income	0	0	Guideln CS		Total taxes	11634	11715
401(k) employee contrib	0	0	S.Clara SS		Dep. exemption value	0	0
Adjustments to income	0	0	Total		# withholding allowances	0w	0w
SS paid prev marriage	0	0	-		Net wage paycheck	18469	18469
CS paid prev marriage	0	0	Settings changed		Mother		
Health insurance	29	1318			Payment cost/benefit	2799	3122
Other medical expense	0	0			Net spendable income	8617	8940
Property tax expense	1435	0	Proposed		Change from guideline	0	323
Ded interest expense	0	0	Tactic 9		% of combined spendable	32%	33%
Charitable contributions	0	0	CS		% of saving over guideline	0%	88%
Misc tax deductions	0	0	2674		Total taxes	2864	2416
Qual bus income ded	0	0	SS		Dep. exemption value	0	0
Required union dues	0	0	Total		# withholding allowances	0	0
Mandatory retirement	0	0	Saving		Net wage paycheck	6824	6824
Hardship deduction	0 *	0 *	Releases				
Other GDL deductions	0	0	Released to Mother				
Child care expenses	750	0					

Father pays Guideline CS, Proposed CS

Mother pays Addons

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	50 - 50	750	0	184	Mother	2983	Father	2799	Father
	50 - 50	375	0	96	Mother	1119	Father	1023	Father
	50 - 50	375	0	88	Mother	1865	Father	1777	Father